

BEFORE THE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. RG PC DLLRL

STIPULATION AND ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDING AGAINST THE LICENSE
TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO
OF RANDALL JAMES SIMS, M.A., LPC, LICENSE NO. 283,

Respondent.

IT IS HEREBY STIPULATED and agreed by and between the State Board of Licensed Professional Counselor Examiners ("Board") and Randall James Sims, M.A., LPC ("respondent"), as follows:

1. The Board has jurisdiction over the person of respondent and the subject matter set forth in this stipulation and order.

2. The State Board of Licensed Professional Counselor Examiners granted respondent a license to practice professional counseling in Colorado on October 20, 1990. Respondent has been licensed to practice professional counseling since that date and was so licensed at times relevant to this stipulation and order. Respondent holds license number 283.

3. On or about June 23, 1998 the Board received a complaint alleging that respondent had engaged in activities prohibited by the Colorado Mental Health Statute by acting in a manner which did not meet generally accepted standards of practice, and engaging in prohibited dual relationships.

4. Following investigation of the complaint the Board determined that reasonable grounds existed to refer this matter to its legal counsel, the Colorado Attorney General, for initiation of disciplinary action against respondent's license to practice professional counseling.

5. Respondent understands he has the right to a formal hearing with respect to the complaint filed against him. Respondent further understands and agrees that, by voluntarily and knowingly entering into this stipulation and order, he waives his right to a hearing; relieves the Board of its burden of proving the facts and conduct complained of; gives up his right to present a defense by oral and documentary evidence; and gives up his right to cross-examine witnesses. Respondent understands that he has the right to appeal the Board's final order to the Court of Appeals. Respondent further understands and agrees that, by voluntarily and knowingly entering into this stipulation and

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order, he waives his right to appeal or otherwise to contest the validity of the final Board order entered pursuant to this stipulation.

6. Respondent admits and agrees as follows:

a. Respondent entered into a professional and therapeutic relationship with client JD to provide JD with professional counseling services, as defined in C.R.S. §§12-43-601(5).

b. The Board could establish a prima facie case of a violation of the Mental Health Act and respondent could introduce evidence in rebuttal and mitigation of the Board's case. The parties wish to avoid the time and expense of litigating this matter and therefore agree to this stipulation and order.

7. The Board, by this stipulation and order, hereby orders that respondent's practice of professional counseling shall be on probation for a period of at least three years commencing with the execution of this stipulation and order or written approval of a Board-approved mental health professional who will evaluate and monitor respondent's practice of professional counseling and report to the Board ("practice monitor"). During the period of probation respondent can practice professional counseling only if he complies with the conditions of the probation and has a practice monitor in place.

8. The conditions of respondent's probation are:

a. Respondent will strictly observe the prohibitions set forth in C.R.S. §12-43-222(1) and assure that he does not engage in any activities that are prohibited activities or fall below generally accepted standards of practice.

b. Respondent's practice of professional counseling shall be evaluated and monitored by his practice monitor who also reports in writing to the Board in accordance with this Order.

c. The practice monitor's first responsibility will be to conduct a practice evaluation. The practice evaluation will examine all aspects of respondent's professional counseling practice and his qualifications, current ability and competence to practice professional counseling. The evaluation will determine if respondent can practice professional counseling with skill and safety for his clients, in accordance with generally accepted standards of practice, and whether respondent has the qualifications, current ability, and competence necessary for the practice of professional counseling. The report on this evaluation shall describe the details of the evaluation and the

evaluator's recommendations and will be submitted as part of the practice monitor's first report.

d. Should the practice monitor determine that respondent is not safe to practice professional counseling or does not have the appropriate qualifications, current ability or competence for the practice of professional counseling or any part of his practice of professional counseling, respondent shall cease the practice of professional counseling (or any part he is found not safe or qualified to conduct) until he is determined to be safe to fully practice professional counseling or has the necessary qualifications, current ability, or competence to fully practice professional counseling. Based on the findings and recommendations of the evaluator, the Board shall determine necessary actions that respondent must take and conditions he must meet so that he can be considered safe to fully practice professional counseling and/or have the necessary qualifications, current ability, or competence to fully practice professional counseling. Once respondent satisfies the Board that he has taken the appropriate actions and met the conditions so that he is safe and qualified to fully practice professional counseling, he may resume the full practice of professional counseling on probation as provided in this stipulation and order. During the period of probation respondent can practice professional counseling only if he complies with the conditions of the probation and has a practice monitor in place.

e. The practice monitoring shall be conducted as follows:

i. The practice monitor shall monitor all of respondent's cases. The practice monitoring shall consist of individual face-to-face sessions between respondent and his practice monitor that occur at least once each week for one hour or such longer time as the practice monitor deems necessary. During monitoring sessions respondent and his practice monitor must review and discuss each of respondent's active cases at least once each month to allow the practice monitor to determine whether respondent is practicing professional counseling in accordance with generally-accepted standards of practice and with skill and safety for his clients.

ii. The practice monitor is authorized to examine and shall examine such client records and case files maintained by respondent as the practice monitor or the Board deems necessary and appropriate to determine whether respondent is practicing professional counseling in accordance with generally-accepted standards of practice and with skill and safety for his clients.

iii. The practice monitor must report the results of monitoring to the Board in writing and send a copy of each

report to the respondent. The practice monitor must submit her/his first report on the fifth day of the month following the first full month of practice monitoring. The practice monitor shall submit subsequent reports on the fifth day of each month thereafter (i.e. on a monthly basis) for the first 12 reports. Following submission of the first 12 reports, unless otherwise directed by the Board, the practice monitor shall submit her/his reports on the fifth day of every third month (i.e. on a quarterly basis) until the practice monitoring is completed.

iv. After the Board's written approval of the practice monitor, respondent and his practice monitor shall enter into a written contract for monitoring. The practice monitor shall provide a copy of that written contract to the Board as part of her/his first report to the Board. The contract must contain a provision stating that the practice monitor has received a copy of this order and of the Board's file; has read these documents; and understands the duties and responsibilities s/he is undertaking as respondent's practice monitor. The practice monitor shall assure that a written notification informing each client of the name, address and telephone number of the practice monitor is provided. This written notification may be provided in a mandatory disclosure statement.

v. If, at any time, the practice monitor is of the opinion that respondent is not practicing professional counseling in accordance with generally-accepted standards of practice or with skill and safety for his clients, or has a condition which may endanger the health or safety of persons under his care, the practice monitor shall report her/his opinion and the basis for that opinion to the Board. The practice monitor shall make that report in writing and within 48 hours of forming her/his opinion. The practice monitor shall send a copy of that report to the respondent when s/he sends the report to the Board. Should the Board receive such a report, respondent shall immediately cease the practice of professional counseling.

vi. Either respondent or his practice monitor may terminate the monitoring relationship on written notice to the other and to the Board not less than 60 days before the date of termination. The notice shall state the reason for the termination. Following the termination Respondent shall not practice professional counseling without first having another Board-approved practice monitor in place. The new practice monitor shall conduct her/his monitoring and report to the Board in accordance with the provisions of this order.

vii. Respondent shall not practice professional counseling without an approved practice monitor in place.

f. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing psychotherapy or mental health services to clients unless such supervision or consultation is monitored by respondent's practice monitor the same as other aspects of his professional counseling practice as provide in this Order.

g. Respondent must complete at least twenty hours per year of Board-approved continuing professional education designed to educate mental health professionals in handling client/therapist boundary and dual relationship issues, confidentiality issues, termination issues, and other legal/ethical issues related to the practice of professional counseling. Completion of an approved jurisprudence workshop is required as part of this educational requirement. The course on legal and ethical issues that respondent is currently taking at the University of Northern Colorado shall meet the continuing education requirement for the first year of probation. Completion of the approved jurisprudence workshop shall apply for part of the twenty hours for the second year of probation. The probation will not be terminated until the continuing education requirements have been completed.

h. Respondent must take reasonable steps to assure that his practice monitor reports to the Board in accordance with this order.

i. Respondent, not the Board, must pay all costs and/or expenses incurred for evaluation, practice monitoring, continuing education, or any other action required in fulfilling the requirements of this order.

j. Respondent must provide written notification of the name, address, and telephone number of his practice monitor to each client who he provides professional counseling to while this order is in effect. This notice may be provided in a mandatory disclosure statement.

k. Respondent agrees that he will provide and allow his practice monitor to provide medical or psychological information to the Board in the event the practice monitor determines that respondent has any condition which renders him unable to treat clients with skill and safety in accordance with generally-accepted standards of practice or which may endanger the health or safety of person under his care. As part of this stipulation and order, respondent explicitly waives his right to maintain confidentiality of medical and psychological records and information provided to his practice monitor if the practice monitor determines that he has any condition which renders him unable to treat clients with skill and safety in accordance with

generally-accepted standards of practice or which may endanger the health or safety of persons under his care.

9. All time periods and obligations provided in this order run only while respondent is engaged in the practice of professional counseling in Colorado under the monitoring of a Board-approved practice monitor. They are tolled and suspended at all other times.

10. If respondent discontinues the practice of professional counseling in Colorado during the period of probation, he shall notify the Board, in writing, within thirty (30) days of ceasing practice. This notification shall include the date he ceased practicing and his new address if he has moved.

11. In the event respondent subsequently resumes his practice of professional counseling in Colorado, he shall notify the Board in writing prior to resuming the practice of professional counseling in Colorado. Such notification shall include his address, the date on which he intends to resume practice, and the name of his Board-approved practice monitor.

12. As used in this stipulation and order, the terms "professional counseling practice", "professional counseling services", "practice of professional counseling", and "professional counseling" have the same meaning as the term "professional counseling" as defined in C.R.S. §12-43-601(5).

13. Respondent enters into this stipulation and order voluntarily, without coercion, and after being fully advised both as to his right to a hearing and as to the consequences of this stipulation and order.

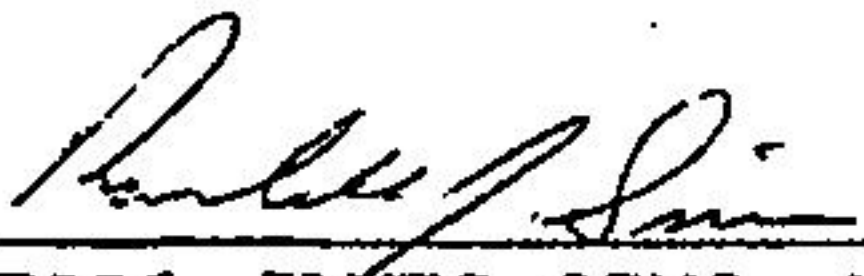
14. No agreement, understanding, representation, or interpretation not contained in this order may be used to vary or to contradict its terms.

15. Each party shall bear its own costs, shall pay its own witness fees, and shall pay its own attorney fees.

16. Each provision of this order is separate. In the event of litigation involving compliance with the terms of this order, the issues will be restricted to those raised by the interested parties; the resolution of those issues will affect only the pertinent parts of the order; and the parties will be obligated by the judicially-construed parts of the order as if they were part of the original order.

17. This stipulation and order shall take effect on acceptance and signature by the Board.

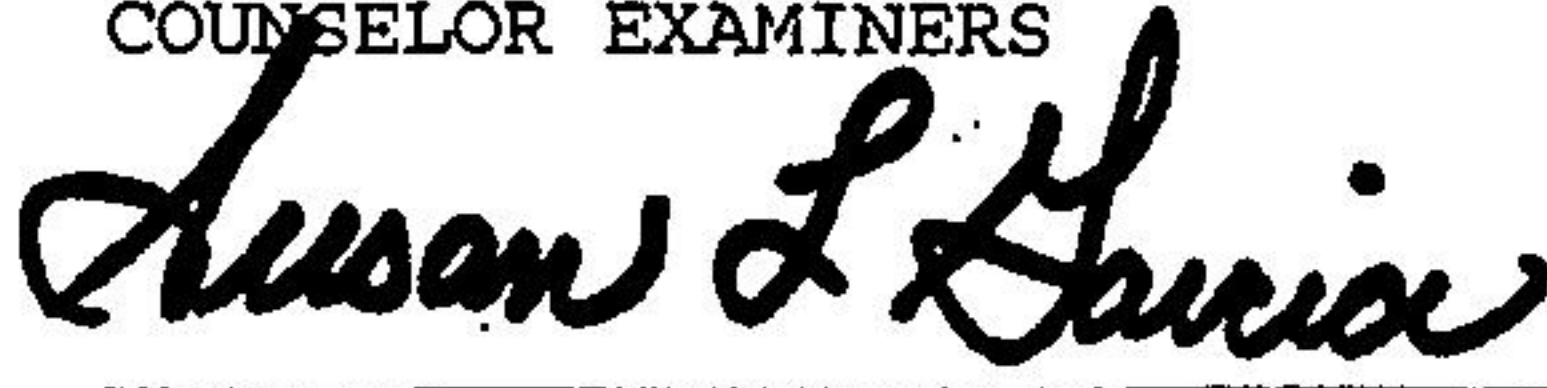
18. This stipulation and order is a public record.


RANDALL JAMES SIMS, M.A., LPC
Respondent

DATED: May 1, 2000

ACCEPTED, SIGNED, AND ORDERED this 8th day of June, 2000.

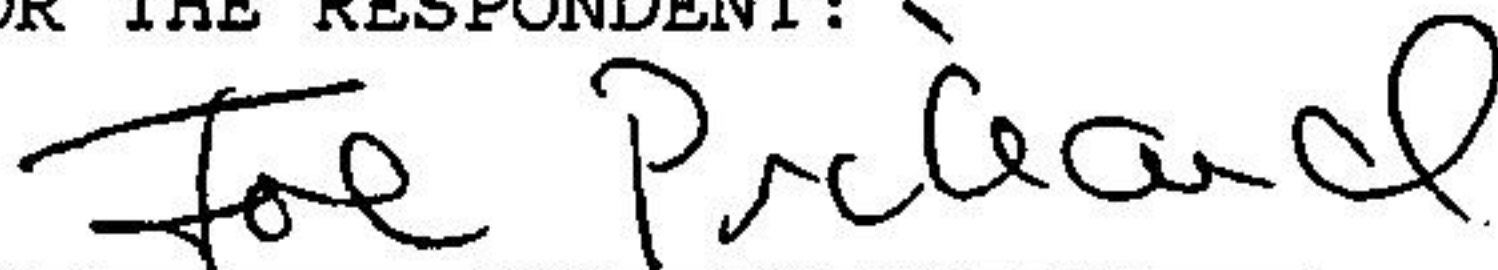
STATE BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS



SUSAN L. GARCIA, LPC
Board Chair

APPROVED AS TO FORM

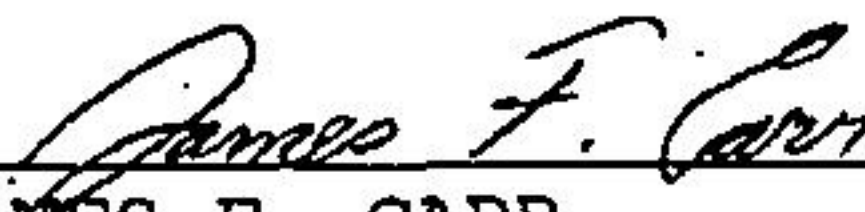
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